

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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JESUS GUERRA

Plaintiff, **SUMMONS TO THE
COMPLAINT**

-against-

Index No. _____/2019

THE CITY OF NEW YORK; P.O. JOHN MCLOUGHLIN,
SHIELD NUMBER 026642; P.O. IVANOVIC GOMEZ,
SHIELD NUMBER 017251; the individual defendants sued
individually and in their official capacity,

Index Purchased: 8/23/2019

Defendants.

Basis of Venue residence of
Plaintiff & occurrence of
incident: 4769 White Plains
Road, Bronx, New York

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To: The Above-Named Defendants

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
August 23, 2019KUSHNER LAW GROUP, P.L.L.C.
Attorney for Plaintiff
16 Court Street, 36th Floor
Brooklyn, New York 11241
(718) 504-1440

By:



Michael P. Kushner, Esq.

Defendants' addresses: City of New York, 100 Church Street, New York, New York 10007; P.O. JOHN MCLOUGHLIN, SHIELD NUMBER 026642 and P.O. IVANOVIC GOMEZ, SHIELD NUMBER 017251; c/o NYPD Headquarters, One Police Plaza, New York, NY 10038

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Plaintiff,

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THE CITY OF NEW YORK; P.O. JOHN MCLOUGHLIN,
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Basis of Venue residence of
Plaintiff & occurrence of
incident: 4769 White Plains
Road, Bronx, New York

Defendants. **Jury Trial Demanded**

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Plaintiff JESUS GUERRA by and through counsel, KUSHNER LAW
GROUP, PLLC upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of his rights secured by the laws of the State of New York; New York State Constitution, Article I, §§ Six, Eight, Eleven, Twelve, and Fourteen; 42 U.S.C. §§ 1983, 1985(3), and 1988; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. The claims arise from an incident(s), which occurred on or about November 20, 2013 and continued up to and including August 25, 2016. During the incident(s), defendants City of New York, P.O. JOHN MCLOUGHLIN, SHIELD NUMBER 026642; P.O. IVANOVIC GOMEZ, SHIELD NUMBER 017251, and other, as yet unknown, members of the New York City Police Department (“NYPD”) subjected plaintiff to, among other things: false arrest and

imprisonment, excessive force, assault and battery, unlawful search and seizure, malicious prosecution, retaliation for free speech, denial of medical care, conspiracy, abuse of process, gross negligence, intentional and negligent infliction of emotional distress, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendants, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. On or about December 12, 2013 the plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office addresses of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York never requested hearings, pursuant to 50-H of the General Municipal law for plaintiff.

5. Defendant City of New York has not requested a physical examination of Plaintiff.

6. Venue is proper in the Supreme Court of the State New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Bronx County.

PARTIES

7. Plaintiff Jesus Guerra was at all times relevant and currently is a resident of Bronx County, State of New York.

8. At all times relevant, defendant City of New York was a municipal corporation duly organized, authorized and existing under and by virtue of the laws of the State of New York.

9. At all times relevant, defendant City of New York maintained a police department known as the NYPD.

10. At all times relevant, defendant P.O. JOHN MCLOUGHLIN was a duly appointed and acting police officer and employed by the NYPD and assigned to the 47th Precinct, located in Bronx, New York. He was assigned Shield Number 026642.

11. At all times relevant, defendant P.O. IVANOVIC GOMEZ was a duly appointed and acting police officer and employed by the NYPD and assigned to the 47th Precinct, located in Bronx, New York. He was assigned Shield Number 017251.

12. At all times relevant, the individual defendants were acting under color of State Law.

13. At all times relevant, the individual defendants were acting pursuant to their authority as NYPD employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of

their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NYPD.

14. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

15. The following is a summary and does not include all details concerning the incident. On or about November 20, 2013 at approximately 11:15 a.m., at and in the vicinity of 4769 White Plains Road, Bronx, New York, PLAINTIFF was falsely arrested and imprisoned by members of the New York City Police Department, upon information and belief assigned to the 47th Precinct, located in Bronx, New York. Including defendants McLoughlin and Gomez.

16. The Plaintiff was subjected to an unlawful search and seizure when the involved officers, without either consent, an arrest warrant, a valid search warrant, probable cause, or reasonable suspicion that Plaintiff (or any third party) had committed a crime detained Plaintiff, searched Plaintiff, entered Plaintiff's home without permission and unnecessarily threw claimant's property about. During this detention, Plaintiff was subjected to excessive force, assault and battery when the individual officers punched and kicked him about the face and body, forced him to the ground by placing their bodies on his neck, and forced his teeth into the ground. Those involved officers who did not actively participate in this unlawful behavior witnessed it but did nothing to protect Plaintiff from it despite the fact that they had a duty to do so.

17. Plaintiff was thereafter arrested without probable cause by the officers before being taken to the 47th Precinct, located in Bronx, New York. Plaintiff was then transported to North Central Bronx Hospital to be treated for the injuries he

sustained as a result of the individual officers' actions. Thereafter, Plaintiff was taken to Bronx Central Booking where he was subjected to depraved filthy, and inhumane conditions of confinement. After Plaintiff's arraignment, he was released on his own recognizance after a period of detention in excess of 18 hours.

18. While Plaintiff was incarcerated at the 47th Precinct and in Bronx Central Booking awaiting arraignment, the defendants who arrested him, acting in concert, and pursuant to a conspiracy, falsely and maliciously told the Bronx County District Attorney's Office that Plaintiff had committed various crimes, and based on the officers' false allegations, the Bronx County District Attorney's Office prosecuted Plaintiff in Court under Criminal Docket # 2013BX067022.

19. The aforesaid events are not an isolated incident. Defendant City of New York is aware (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of the NYPD's officers are insufficiently trained on the proper way to investigate, use force, and search arrestees or detainees, and treat innocent and/or uninvolved individuals who are found at an incident scene and/or investigation location.

20. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, City of New York has failed to take corrective action. This failure caused the defendants in the present case to injure Plaintiff, violate the law, and violate the Plaintiff's rights.

21. Moreover, defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity,

discretion, and disposition to be employed. Despite such notice, defendant has retained these individuals, and failed to adequately train and supervise them.

22. At all times defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, negligently and recklessly trained the individual defendants for the position of police officers.

23. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

24. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

25. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

26. The occurrence(s) and injuries sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant City of New York and its agents, servants and/or employees, as set forth above, without provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained the individual defendants.

27. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

28. The plaintiff did not resist arrest at any time during the above incidents.

29. The Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

30. The individual defendants did not observe Plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

31. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that Plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

32. The defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of their rights.

33. At all times relevant, the individual defendants were acting pursuant to their authority as NYPD employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of

their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NYPD.

34. The above-stated malicious prosecution was initiated without probable cause to believe that the prosecution would be successful and without regard to Mr. Guerra's innocence.

35. The above-stated malicious prosecution was initiated with malice because it was not based upon probable cause.

36. The above-stated malicious prosecution terminated in Mr. Guerra's favor on August 25, 2016 when the charges were dismissed and sealed against him.

37. The above-stated malicious prosecution caused a significant post-arraignment liberty restraint on Mr. Guerra, namely the time he spent in custody and the several court appearances he was required to make in order to defend against the false allegations.

38. The individual defendants are sued in their individual and official capacities.

39. As a direct and proximate result of defendants' actions, Plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

40. The Plaintiff are also entitled to receive punitive damages from the individual defendants because defendants' actions were motivated by extreme recklessness and indifference to the Plaintiff' rights.

FIRST CLAIM**(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE
UNDER FEDERAL LAW)**

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants falsely arrested Plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiff had committed a crime.

43. Accordingly, defendants are liable to Plaintiff for false arrest and unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE
UNDER STATE LAW)**

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants falsely arrested Plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiff (or any third person) had committed a crime.

46. Accordingly, defendants are liable to Plaintiff for false arrest and unlawful search and seizure under New York State law.

THIRD CLAIM**(EXCESSIVE FORCE UNDER FEDERAL LAW)**

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. The individual defendants' use of force upon Plaintiff, as described herein, and the individual defendants' failure to intervene, was objectively unreasonable and caused Plaintiff pain and injury.

49. Accordingly, defendants are liable to Plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM

(ASSAULT UNDER STATE LAW)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Among other things as described above, defendants' search and seizure, and use of force against Plaintiff placed them in fear of imminent harmful and offensive physical contacts.

52. Accordingly, defendants are liable to Plaintiff under New York State law for assault.

FIFTH CLAIM

(BATTERY UNDER STATE LAW)

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. Among other things as described above, defendants' search and seizure, and use of force against Plaintiff were illegal physical contacts.

55. Accordingly, defendants are liable to Plaintiff under New York State law for battery.

SIXTH CLAIM**(VIOLATING PLAINTIFF'S RIGHT TO FREE SPEECH
UNDER FEDERAL LAW)**

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Plaintiff exercised free speech during the incident by, among other things, telling the individual defendants that they had not committed a crime, that the officers were mistreating them and that the individual defendants were acting in an unlawful manner.

58. Plaintiff' use of free speech was a motivating factor in the individual defendants' decision to arrest, and prosecute them. Accordingly, defendants are liable to Plaintiff under the First Amendment to the United States Constitution for violating Plaintiff' right to free speech.

SEVENTH CLAIM**(FAILURE TO SUPERVISE)**

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. The supervisor defendants are liable to Plaintiff because they supervised the subordinate individual defendants concerning above-mentioned unlawful acts against Plaintiff, and approved their unlawful actions.

EIGHTH CLAIM**(42 U.S.C. § 1983 CONSPIRACY)**

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants are liable to Plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to Plaintiff.

NINTH CLAIM

(42 U.S.C. § 1985 CONSPIRACY)

63. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

64. The individual defendants arrested Plaintiff in continuation of defendant City of New York's custom, practice and/or policy of stopping and/or arresting individuals based on pretexts in order to meet productivity goals in minority and low-income neighborhoods.

65. Defendants are liable to Plaintiff because they conspired against Plaintiff based on racial or other invidiously discriminatory animus for the purpose of depriving Plaintiff of equal protection of the privileges and immunities under the law, and committed an act in furtherance of the conspiracy, which injured Plaintiff.

TENTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING TRAINING AND
RETENTION OF UNFIT EMPLOYEES UNDER STATE LAW)**

66. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

67. Defendant City of New York is liable to Plaintiff because the occurrence and injuries sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without

provocation on the part of Plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers.

ELEVENTH CLAIM

**(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER STATE LAW)**

68. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

69. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon Plaintiff.

70. The defendants' actions against Plaintiff were extreme and outrageous and caused Plaintiff severe emotional distress.

71. The defendants breached a duty owed to the Plaintiff that either unreasonably endangered Plaintiff' physical safety, or caused the Plaintiff to fear for their own safety.

TWELFTH CLAIM

(NEGLIGENCE, GROSS NEGLIGENCE UNDER STATE LAW)

72. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

73. Defendants are liable to Plaintiff because defendants owed Plaintiff a cognizable duty of care as a matter of law, and breached that duty.

THIRTEENTH CLAIM**(ABUSE OF PROCESS UNDER STATE LAW)**

74. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

75. Defendants are liable to Plaintiff because they issued process with intent to harm Plaintiff without justification, and perverted use of otherwise legal process to obtain a collateral objective.

FOURTEENTH CLAIM**(MALICIOUS PROSECUTION UNDER FEDERAL LAW)**

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. Defendants are liable to Plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against Plaintiff by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged Plaintiff had committed various crimes; and based upon these false statements, prosecutors prosecuted Plaintiff until the cases against Plaintiff were dismissed in their entirety.

78. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

79. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

80. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on Plaintiff.

FIFTEENTH CLAIM

(MALCIOUS PROSECUTION UNDER STATE LAW)

81. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants are liable to Plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against Plaintiff by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiff had committed various crimes; and based upon these false statements, prosecutors prosecuted Plaintiff until the cases against Plaintiff were dismissed in their entirety.

83. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

84. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

FIFTEENTH CLAIM

(MONELL CLAIM AGAINST THE CITY OF NEW YORK)

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiff.

87. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

88. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

89. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop and/or arrest innocent individuals, based on pretexts, in order to meet productivity goals, in minority and low-income neighborhoods.

90. In addition, the following are municipal policies, practices and customs:

- (a) arresting innocent individuals, based on a pretext, in order to meet productivity goals;
- (b) fabricating evidence against individuals;
- (c) using excessive force against individuals; and
- (d) retaliating against individuals who engage in free speech.

EIGHTEENTH CLAIM**(STATE LAW RESPONDEAT SUPERIOR CLAIM AGAINST
CITY OF NEW YORK)**

91. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

92. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against Plaintiff, including falsely arresting, assaulting, and battering Plaintiff.

93. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, Plaintiff demands judgment against defendants, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

Dated: Brooklyn, New York
August 23, 2019

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BY:



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